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SUPREME COURT OF THE UNITED STATES:
YOUNGSTOWN V. SAWYER
BACKGROUND GUIDE

TRITONMUN XXXI – APRIL 12TH, 2026

MODEL UNITED NATIONS AT UNIVERSITY OF CALIFORNIA, SAN DIEGO

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HEAD CHAIR LETTER

Greetings, delegates!

Welcome to the Supreme Court of the United States, where passionate testimony, captivating debate, and decisive rulings occur! My name is Ethan Teng, and it is my utmost pleasure to serve as your Head Chair for *Youngstown Sheet & Tube Co. v. Sawyer* and to welcome you to TritonMUN XXXI/31. I'm currently a freshman at John Muir College majoring in General Political Science on a pre-law track, and this is my fifth year doing Model United Nations. I've done all sorts of things in Model UN including staffing and participating in joint and historical crisis committees, but the most fun I've had was when I chaired for a Supreme Court of the United States specialized committee for the first time in high school. Since then, I've wanted to recreate the experience for more students to have as well. Outside of MUN, I love practicing guitar, playing video games, skating, model building, and a great deal of other things.

Before working on this committee, *Youngstown v. Sawyer* was a landmark case that I hadn't heard of and is generally overlooked when considering important SCOTUS cases. In a modern day context, I believe the rulings and debate surrounding it have exceptional importance, considering the extent of executive power and their reach during wartime circumstances. I consider my ROP to be quite unique compared to any committee you might have participated in before, but I encourage you to be proactive and take risks: this committee was structured in a way where I want you, the delegates, to take initiative and shape it into something you envision. I've had an incredible time writing up everything for this committee, creating unique opportunities and tools for everyone to have at their disposal. Do your research, act efficiently and charismatically, and I assure you that you'll have much more than fun to gain out of this committee.

If you have any questions, please don't be hesitant to reach out to Paige and me. The future of your country and legal precedence are just a step away!

Best of luck,

Ethan Teng

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VICE CHAIR LETTER

Hello everyone!

I am so thrilled to welcome you to the Supreme Court of the US for a fruitful debate and fun weekend! My name is Paige Collier, and I will be your Vice Chair for the SCOTUS committee. I am a fourth year studying Classics and Public Law with a minor in Marine Biology, so as you can see, I have very diverse academic interests. I am on the pre-law track, so this committee topic is especially near and dear to my heart. I have been doing Model UN for 7 years now, and in that time I have had the opportunity to see many different committees and topics, and I have found that each one is fun and exciting in new ways. I hope to share this with you all!

In my free time, you can find me enjoying the beach either surfing, SCUBA diving, swimming, or just reading on the beach. I also enjoy baking, board games, and spending time with loved ones. If any of you have questions about college MUN or even just life after high school, feel free to ask! Getting back to the conference, I am beyond excited to serve as your Vice Chair and I am looking forward to hearing all of your unique ideas! My favorite part of MUN is hearing diverse ideas and understanding other perspectives, and I look forward to your creative debates and fun speeches!

See you soon delegates, and feel free to reach out to Ethan or myself with any questions and concerns you may have about committee.

You've got this!

Paige Collier

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POSITION PAPER GUIDELINES

TRITONMUN POSITION PAPER GUIDELINES

- Position Papers are due on **April 3rd at 11:59pm.**
 - Requests for extensions must be sent by the advisor to TritonMUN by **March 22nd.**
- Position Papers must be submitted to the **Google Form** linked here:
 - <https://forms.gle/PFLDgK4Z63Q5f2BA6>
- Format.
 - Papers should be double-spaced in Times New Roman 12 pt. font and include no pictures.
 - At the top of each paper, include your country/person, name, committee, and topic.
 - Required* Sections: Each of these sections should be clearly labeled
 - Background
 - Past Actions by the Committee (if applicable)
 - Position of your Country/Person
 - Possible Solutions

*Some committees may ask for different formatting or an alternative to a position paper altogether, this will be clearly noted in the background guide for that committee

COMMITTEE POLICIES

Sensitivity & Harassment Policy:

TritonMUN is committed to fostering a healthy environment for diplomacy and dialogue, and upholding standards of diversity, equity, and inclusion for all delegates. Harassment or disruptive behavior of any kind—whether verbal or non-verbal, in or out of committee—is strictly prohibited. All attendees and staffers should be treated with equal respect, and discrimination on the basis of race, color, gender identity, sexual orientation, religion, nationality, ethnicity, or physical/mental disability will not be tolerated. This list is not exhaustive, and should not be treated as such. **Please report any instances of harassment to conference staff, either directly or through the Anonymous Feedback Form.**

In addition, we acknowledge that topics discussed in-committee may be politically sensitive, particularly in Specialized and Crisis Committees. While we understand that delegates may be immersed in the action and setting of their committee, delegates must maintain decorum and refrain from inflammatory language and actions, even when doing so may be historically accurate to one's character, group, or country. When drafting crisis directives, delegates should refrain from pursuing any action that explicitly violates human rights, including—but not limited to—enslavement and genocide. **Please refer to your committee's background guide for specific sensitivity statements and guidelines, and direct any questions to the committee's head chair.**

All attendants should observe these policies during the entirety of the conference, even outside formal debate, including opening/closing ceremonies, "FUNMUN", etc. Please note that violation of these policies may result in consequences such as disqualification from awards and contact towards the delegate's Advisor. At TritonMUN, our goal has always been focused on the delegate's abilities to enjoy and have fun in committee. However, in order to truly enjoy TritonMUN, delegates must feel safe in committee, which starts with respecting one another.

Plagiarism & Generative AI Policy:

TritonMUN recognizes that Model United Nations provides a space for aspiring leaders to showcase their work and abilities, and that all delegates wish to be evaluated in a fair and accurate manner. As such, we expect all delegates to perform with integrity and refrain from plagiarizing the work of their peers. This includes—but is not limited to—claiming the work of another delegate as one's own, including another bloc's unique clause without prior approval from the original writer, and replacing another's work with one's own (i.e. overwriting).

In addition, delegates are strictly prohibited from utilizing generative AI to produce position papers, resolutions, and directives, in part or in their entirety.

Resolution Work Outside of Committee:

TritonMUN wishes that all delegates use their breaks and downtime as intended: to connect, relax, and refresh. While not in committee, delegates are strictly prohibited from working on resolutions and directives. In addition, this means that pre-writing, or preparing resolutions and directives before the start of the conference, is strictly prohibited.

Technology Policy:

Delegates should expect the use of technology to be limited during specific sections of committee, such as voting bloc, presentation of judicial opinion, and amicus curiae briefs. Otherwise, delegates are permitted to use technology to work on the judicial opinion and other documents. Delegates may have this privilege revoked if found to be using technology for purposes unrelated to committee.

RULES OF PROCEDURE

NOTICE: This is not a typical specialized committee. Directives will *NOT* be passed or written, contrary to what you might have experienced previously in other specialized committees. The only documents to be considered in this committee are written amicus curiae briefs.

Roll Call:

Roll call is performed by the Chair at the beginning of every committee session. Because SCOTUS does not use voting procedure to confirm decisions, members may only declare themselves to be “present.” All justices are required to take side in an opinion.

Perpetual Moderated Caucus:

- As this is a specialized committee, perpetual moderated caucus will take place. The standard speaking time will be one minute.
- The procedure is as follows:
 - Dais calls for delegates wishing to speak to raise placards.
 - Dais chooses any number of delegates to speak in order: each delegate will have the standard speaking time.
 - These steps are repeated until the perpetual moderated caucus is closed or suspended. The perpetual moderated caucus will be suspended if no delegates choose to raise their placards to speak: as such, we necessitate a minimum of one delegate to speak each time the dais calls for those wishing to speak.

Precedence of Motions (Most to Least Disruptive):

1. Suspension of Debate
 2. Present an Opinion
 3. Closed-doors Judge Deliberation
 4. Present an Amicus Curiae Brief
 5. Present Evidence
-

6. Extension
7. Straw Poll
8. Unmoderated Caucus
9. Gentlemen's Unmoderated Caucus
10. Round Table
11. Other Suspension of the Rules, entertained at dais discretion

Motions:

All motions may be made during any downtime between an exhausted speaker's list of the perpetual moderated caucus. A majority vote will be made accordingly. The dais reserves the right to rule any motion dilatory at any time.

MOTIONS OF COMMITTEE:

Motion to Present an Opinion:

After the Majority Opinion and Dissenting Opinion are complete, the delegates may request to present the opinion in front of the committee and dais. Following presentation of the opinion, amendments will not be entertained, but a brief Q&A period may be deemed fit by dais discretion.

Motion to Present Evidence:

Delegates wishing to present evidence must first input evidence into a shared document with the dais. If the motion passes, the evidence presented will be shown in front of the committee, and that delegate will have three minutes to describe the evidence and its implications.

- a. Formal processes are required in order to present evidence in court. Prior to the motion, the evidence that a side wishes to submit must undergo a brief review from the dais. *We want you to utilize evidence found through active research BEFORE the conference: you may refer to legal codes of the time period, discuss precedent cases, etc. Once created, the dais will review on a case-by-case basis to ensure the sufficiency, appropriateness, and relevancy.*

- b. Upon dais approval, the evidence may be presented to the court. Representatives submitting the piece of evidence will be given the aforementioned three minutes of speaking time to summarize and add to their argument.

Motion to Present an Amicus Curiae Brief:

Delegates representing a side may call for another delegate in the role of an amicus curiae to be called to the stand to provide an account of their opinion and summarize/elaborate on their written brief. Delegates in the role of an amicus curiae considered to be an expert of their field may provide delegate research-backed advice to the committee to be taken as facts into consideration of the case.

This differentiates from speaking normally during the perpetual moderated caucus in the sense that it should be used to OFFICIALLY present opinions and information advantageous to your side: this may entail an expert opinion/account, or presentation of legal code or information that the primary representative could not before.

- a. Once an amicus curiae is called and provides their brief, the representative(s) of their side will be permitted to ask three questions, to which the witness may respond to accordingly.
This is an opportunity to fortify your argument with further amicus curiae answers.
- b. Afterwards, the opposing representatives will be allowed to ask three questions in a cross-examination, to which the witness may respond to accordingly.
This is an opportunity to examine the validity and effectiveness of the amicus curiae's brief.
- c. Each amicus curiae may present/hold their brief *ONCE* per committee session.

Motion for closed-doors Judge Deliberation:

Delegates in the role of justices may motion to hold a closed-door conference with all other judges to discuss sensitive matters and opinions on the case. This may be done at any time during aforementioned availability for motions.

- a. This motion exists for judges to deliberate among themselves over presentation and writing of majority and dissenting opinions, without further input from others.

Motion for an Unmoderated Caucus:

Delegates may request a brief period of informal debate in the form of an Unmoderated Caucus to work on and converse with others. The dais may limit the number of times such requests are entertained, by their discretion.

DOCUMENTS OF THE COMMITTEE:**Judicial Opinion:**

Opinions need to include the following.

- Date
- Names of the Judges authorizing the judgment
- Names of advocates
 - Name of the sender of the document
- Summary of the trial
- Statement of the facts
 - Objective descriptions of events that occurred sans the countries' interpretation of those events, how those events impact the judges' decisions, etc.
- Legal ground
 - Specific international regulations that the defendant did or did not violate and the implications of those (how that proves the applicant's accusation, what the outcome should be based on the severity of the violation, etc.)
 - Optional inclusion of law or interpretation from an earlier decision that set the precedent for this interpretation of events
- Decision
 - What the decision should be based on the above details, and how the legal ground and the facts implicate why each judge voted in the manner they did

Evidence:

Evidence may be presented through quoting and citing an existing piece of legislation, law, or research, or through a visual presentation such as information through maps or diagrams. The

evidence may come from the background guide or be found through individual research conducted by delegates.

Amicus Curiae Written Brief:

Prior to being called to the stand and providing an oral brief, amicus curiae must submit a written document detailing an outline of what they wish to speak on to the chair. It will subsequently be shown alongside their oral brief. Amicus curiae are permitted to submit *ONE* of these per committee session. Collaboration with other representatives in this committee is permitted for the preparation of these documents, but collaboration with any justices is *NOT* permitted.

KEY TERMS

1. **United Steelworkers of America:** A general trade union, including laborers for steel mills and factories during the Korean War, who threatened strike for higher wages against major U.S. steel producers.
 2. **Wage Stabilization Board:** Independent agency of the U.S. government that sought to make and influence wage control policies during the Korean War, created by the sitting President Harry S. Truman. The Board held power to control wages of hourly employees, albeit with extremely limited authority.
 3. **Tart-Hartley Act:** U.S. Federal Law created and meant to restrict the power and activities of labor unions. A distinct power of the act is the ability of the President to issue an 80 day long injunction, halting a strike or lockout for a maximum of 80 days. It was vetoed by President Truman only to be overridden by Congress.
 4. **Selective Service Act:** U.S. Federal Law meant to function as a military mobilization law. It introduced requirements for eligible men to register in draft. It also focused on the procurement and allocation of military resources during mobilization, permitting requisitioning property for military purposes with the according compensation to owners.
 5. **Injunction:** A court-ordered directive requiring a party to perform or cease an action to prevent immediate harm when financial compensation is inadequate to the plaintiff. Prior to this landmark case, the plaintiffs were requesting an injunction for a restraining order.
 6. **Balance of Equities:** Judicial principle used to determine if a remedy (such as an injunction) is fair, weighing potential issues caused to the defendant as compared to the benefit to the plaintiff. It acts to ensure fairness in disputes.
 7. **Stay Order:** Court directive that pauses or completely halts an action, court proceeding, or enforcement of a decision.
 8. **Certiorari:** A writ or order made where a higher court reviews a lower court's decision. In this case, certiorari was petitioned for with the Supreme Court.
 9. **Amicus curiae:** An individual or group permitted to assist the court with information, expertise, and more related to the case at hand.
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HISTORICAL BACKGROUND

INTRODUCTION

On June 27th, 1950, U.S. President Harry S. Truman ordered the deployment of U.S. air and naval forces to assist South Korea shortly after North Korea began their invasion. This marked the United States' beginning of their official involvement in the Korean War. Rather than using price controls similar to the ones set during World War II for the purpose of distribution of scarce resources and preventing inflation, Truman chose to create the Wage Stabilization Board, seeking to use this to control wages and subsequent consumer prices. However, upon the proposal of higher wages for steel workers, companies rejected it unless permitted to raise prices in a manner the government could not approve of. As such, unionized workers under the United Steelworkers of America planned for strike in April of 1952. However, before the strike began, Truman seized and nationalized steel plants with the same industry management in place to act under the federal government's guidance.

THE ADMINISTRATION'S CHOICE

Incapable of making a union and industry management compromise, Truman's seizure of the steel plants was announced with a radio and TV broadcast. There were other options opposed to the direct seizure. Two other acts were potential choices, with the Tart-Hartley Act containing national emergency provisions to prevent striking altogether and the Selective Service Act permitting seizure, but on the grounds of the compliance process being too uncertain and lengthy. The Tart-Hartley was rejected out of the administration's previous disapproval of it, and the Selective Service was rejected out of concerns for time constraint. Thus, with all options exhausted, Truman turned to implied emergency-time power.

PRE-SCOTUS PROCEEDINGS

Shortly after the President's speech, attorneys were sent by the steel companies to the residence of Walter M. Bastian, the Washington D.C. district court judge. He scheduled an emergency motion hearing for the issuance of a restraining order. The responsibility fell upon Judge Alexander Holtzoff, who ruled denial of the motion on the grounds of balance of equities favoring the government. In Holtzoff's written ruling, he considers damage to the plaintiff, citing the fact that managerial staff were not displaced, but still possessed and conducted company operations. He also states that an injunction levied on Sawyer would effectively be an injunction levied on the President himself: Holtzoff believed this was something that should not be done without vital reasoning.

Afterwards, the case was handed to Justice David Andrew Pine, hearing the motion for preliminary injunction. Pine was most interested in the issue of whether the President had the power itself to seize the facilities, while the companies were more focused on the equities and the President's power under the Tart-Hartley Act. However, once the issue of whether the President could seize property without Congress approval was brought up, Pine asked for the Assistant Attorney General to respond. He presented Article II of the Constitution, claiming the President had inherent and implied powers associated with it, an extreme interpretation that the administration itself did not align with. Truman would issue a statement afterwards that acknowledged limitations the Constitution places upon the President's power during national emergencies. Soon after, Pine issued the injunction, strikes resumed, and the federal government requested a stay order from Pine and appealed the case. The D.C. circuit court, sitting en banc, granted the stay under the condition that the federal government petition for certiorari and would last until SCOTUS acted on the petition. Upon doing so, the government found the steel companies had already filed their own, and requested renewal for the stay.

SCOTUS shortly granted certiorari and issued a stay that stated the federal government could not increase laborer wages during the pending appeal, but could maintain possession of the steel mills post-seizure. This set the stage for oral argument in the Supreme Court ten days after certiorari was granted, in which delegates of this committee will proceed to emulate and debate on. The resource necessity of an ongoing war looms over this courtroom: each judge, representative, and assistant of the court must tread carefully to reach an effective deliverance of justice.

ROLE DESCRIPTIONS

This committee includes select fictional characters and will be marked as such below. These fictional characters are not named after nor based on any real people involved in the case.

Chief Justice Fred M. Vinson

Previously the Secretary of Treasury, a Congressman representing Kentucky, and an Associate Justice for the U.S. Court of Appeals for the District of Columbia, the Chief Justice led the court with expertise. Vinson held moderately conservative views, generally favoring government authority, flexibility, and national security over the topic of individual liberties. He often sought a unified court that came to consensus, despite the ideological struggles between justices. He led the “Vinson bloc,” a group of judges that voted together extremely frequently in non-unanimous decisions: this included Vinson himself, Clark, Minton, Reed, and Burton.

Associate Justice Hugo L. Black

Justice Hugo Black was a liberal-leaning justice known for his absolutist interpretation of the Constitution, tied to the beliefs of the era it had been written in: for example, he developed an extremely absolutist interpretation of the First Amendment, and strictly interpreted the explicitly granted powers to each branch of government. Black was previously involved in a dispute with Justice Robert Jackson, but has since made amends after Vinson’s appointment as Chief Justice.

Associate Justice Stanley Reed

Justice Stanley Reed was a pragmatic New Deal Democrat, holding economically liberal and socially conservative views. He frequently sided with liberal majorities in the court on most issues related to economics, but clashed with issues surrounding civil rights. As such, he held a centrist position that aligned with the court’s gradual shifting opinions on social liberalism. He held a pragmatic, deferential interpretation stance of the Constitution, believing it must be interpreted in light of real-world conditions and deference to other political branches.

Associate Justice Felix Frankfurter

Justice Felix Frankfurter was, despite being a New Deal appointed justice, a conservative justice who championed the concept of judicial restraint: he believed the court must observe a limitation of its own power, permitting existence of laws and government action that may be in violation of the Constitution out of the principle of deferring to legislative bodies. In essence, he believed in a powerful “separation of powers.” As such, he would often clash with other justices who sought an opposite approach of judicial restraint.

Associate Justice William O. Douglas

Justice William Douglas was a strong, progressive civil libertarian, supporting the general idea of individual rights against government overreach and interference. As a New Deal advocate, Douglas also supported the federal government having greater power to regulate the national economy. That meant when it came to the Constitution, Douglas held an opinion adjacent to that of strict separation of powers, with a structural approach towards the text.

Associate Justice Robert H. Jackson

Justice Robert Jackson was a liberal, nationalistic, pragmatic justice who believed in the balance of individual liberties with greater public order, working with a case-by-case approach that rejected absolutist interpretations of the Constitution. Similar to other justices, he championed distinct separation of powers, noting the necessity of differentiation in presidential power, congressional authorization, and the relationship between the two. He is well known for his role as chief prosecutor in the Nuremberg trials.

Associate Justice Harold Burton

Justice Harold Burton was a Republican justice who lacked a distinctive judicial philosophy, but was a core advocate of judicial restraint, much like Frankfurter. Many of his decisions were based on narrow procedural grounds rather than broader Constitutional merit, consisting of things like consideration for jurisdiction and following specific legal procedure. His input could help unify the court on procedural grounds when constitutional opinions were split.

Associate Justice Tom C. Clark

Justice Tom Clark was a pragmatic moderate who often functioned as a swing vote, with equal usage of judicial restraint philosophy and more expansive constitutional interpretation. Notably, his swinging moderate stance is made clear through his simultaneous support of constitutional rights of criminal defendants alongside his general deference to the government on the constitutionality of Cold War-era laws. Notably, he was previously the U.S. Attorney General, consistent with his pro-government stance in some cases.

Associate Justice Sherman Minton

Justice Sherman Minton was another supporter of strong judicial restraint, deferring to the other branches of government despite a New Deal liberal background and consistently voting liberal during his Senate tenure. He would frequently side with the government over private citizen matters. He favored the idea of minimizing judicial interference so long as it was not necessary. However, similar to other justices with the same ideologies, he would vote in favor of civil rights legislation.

John W. Davis

A former diplomat, House of Representatives member, and presidential candidate, John W. Davis serves as the petitioner advocate in this case. Prior to being brought on to the case, Davis has already provided an opinion to the Republic Steel Company on his stance against the President's implied power to seize the industry in event of a "national emergency." A powerful presence in the courtroom and admirable speaker to even justices, Davis' extensive experience is made clear through the 140 cases he argued in front of the Supreme Court. He championed conservative, limited government ideas throughout his career.

Philip B. Perlman

Previously the Assistant Attorney General of Maryland and Secretary of State of Maryland, Perlman was appointed as the Solicitor General under Truman. He holds moderately liberal viewpoints, made evident through his civil rights cases taken while being a private lawyer, and

the legal approach of a strong advocate for his client, rather than that of an ideologue. He believed in the utilization of government power to address social and private issues, reflective of his argumentation in this case.

Arthur J. Goldberg

A future associate justice of the Supreme Court in the 1960s, Arthur J. Goldberg serves as an amicus curiae for the United Steelworkers of America in this case. In the context of this case, Goldberg still serves as general counsel to the same group. As such, his amicus curiae accounts likely stem from his legal expertise, mirroring specific arguments made by the petitioner advocate and serving to bolster their argument. Representing a labor union, he'll likely seek a favorable outcome for the workers themselves as well.

Clifford C. O'Brien

Speaking on behalf of the Brotherhood of Locomotive Engineers, Clifford C. O'Brien is an amicus curiae in this case. He plays an important role in representing the interests of a labor union, as this case carries broader implications beyond the privileges of the executive surrounding the working privileges, rights, and results of the strikes that laborers initially went on. As such, O'Brien likely argues with a positive outcome for the laborers themselves in mind.

Harold C. Heiss

Speaking on behalf of the Brotherhood of Locomotive Engineers, Harold C. Heiss plays an identical role to that of O'Brien. The two will work together to represent the exclusive interests of the labor union, ensuring that the decision and results of this case benefit the laborers and union on top of the case reaching a favorable outcome for the petitioner.

Constance A. White (Fictional)

As a well-versed constitutional scholar and educated legal historian, Constance A. White serves in this case as amicus curiae. White will likely be brought upon by the court to provide expert opinion, evaluation, and input from an objective standpoint on constitutional interpretation and involving precedent cases and their decisions, acting to advise justices to make a more well-rounded consideration of the case.

Gordon Clarke (Fictional)

Serving as a defense official in the Truman administration, Gordon Clarke represents the interests of the federal government and executive powers. His primary concerns surround the resource necessity of the Korean War. While Clarke does not involve himself in this case with a particular side or opinion in mind, he must deliver results in the decision through his input, ensuring the U.S. military receives necessary resources like steel to advance the war effort.

Douglas Ward (Fictional)

As a representative given full independent operating authority for the General Dynamics Electric Boat company, Douglas Ward acts to further the interests of the company when it comes to their wildly profitable existing partnership with the U.S. government for shipbuilding during the Korean War. As steel is a key resource and necessity for shipbuilding, Ward must aim to reach a favorable result for the company and their sustained deliverance of the contracted tools to the government for war efforts.

CASE STUDIES

In the Supreme Court, precedent cases are often referred to during newer rulings for the sake of legal principle consistency and the doctrine of *stare decisis*: standing by what's decided already. Here are a few similar (but unrelated) examples that might help you:

THE PRIZE CASES

The Prize Cases were a set of four cases decided in 1863 surrounding circumstances of the Civil War. In the wake of possible hostilities, Lincoln put in place a naval blockade around the Confederate states, effectively deeming them belligerents, rather than insurrectionists or a group the country would be at actual war with. In maritime law, capturing and impounding a ship without a formally declared war was considered piracy, causing the cases to rise through courts after merchants who had their ships and belongings seized by the U.S. Navy had claimed it was legal to sell goods and wartime supplies to the Confederate states.

The Court proceeded to rule that the Confederate states were insurrectionists and were at war with the Union, based on multiple acts of belligerency that had taken place a couple years prior to the ruling. The court concluded that a war did not have to constitute conflict between two independent nations, and that the presence of the Confederacy as a non-nation belligerent group meant an ongoing war. What is important to note here is the reasoning behind the dissenting opinion: the President is not given authority to declare war, but Congress is given the power to by the Constitution. Lincoln had ordered the naval blockade before Congress had officially declared war against the Confederacy. In the context of this committee, consider the implications of the Prize Cases' rulings and what they suggest about the distinctions between executive and Congressional power.

BIDEN V. NEBRASKA

In 2020, the campaigning presidential candidate Joe Biden promised to cancel student debt for borrowers up to \$10,000. After being elected to become the sitting president, the administration announced their intent to carry out the same promise for any borrowers with income less than \$125,000 annually. A number of states, including Nebraska, challenged this and

claimed it violated the Administrative Procedure Act and separation of powers, with the administration claiming that under the Higher Education Relief Opportunities for Students (HEROES) Act, the Secretary of Education had the authority to cancel said debt.

The court ruled that the HEROES Act did not permit this, as it only permits the Secretary to modify statutory provisions in a minor way. The cancellation of billions of dollars worth of debt would be a change that fundamentally altered how Congress's approved loan forgiveness program would have functioned. Another key reason for the rejection was the claim that the nature of the COVID-19 pandemic justified the debt cancellation plan. In the context of this committee, consider how reasoning was attempted to be used here in the context of the pandemic and how that might align with other national emergencies and times of crisis and how the circumstances surrounding Congressional and executive authority tie back as well.

QUESTIONS TO CONSIDER

1. How might judicial philosophy of justices factor into how one considers constitutional interpretation in this case?
2. How does the philosophy of judicial restraint factor into how one considers the privileges of the separate executive and legislative branches during “national emergency” periods of time?
3. How might the principle of balance of equities factor into further decision making in this case past the D.C. district court decision? How might the balance of equities tie into certain justice’s judicial philosophy? Consequently, how might the results of this case serve the personal interests and benefit/loss of each party involved?
4. How can the presence of alternative options to the direct seizure of the steel industry available to the Truman administration factor into arguments both for and against the defendant?
5. Does the broader context that this case takes place in matter for consideration of this case? Should this case be argued under the recognition of possible consequences and results on a national scale during this “national emergency” period of time?
6. Consider the explicit rights and privileges of workers in the steel industry to go on strike. How might the consideration of their fundamental rights under the Constitution factor into this case’s argumentation? More broadly, how are the workers on strike tied into the question of broader implications and consequences of this case’s decision?

CLOSING REMARKS

Delegates,

We have high hopes for all of you. SCOTUS may be different from any committee you've participated in before, but regardless of your level of experience, we have faith all of you will do well: as such, my expectations for everyone are high. Nonetheless, our main hope is that everyone has fun with this committee. What you put into this experience is what you will get out as well, and as long as you remain invested in your character and role within this court, I guarantee you'll leave with a sense of accomplishment.

Please extensively review the ROP. Don't hesitate to use every unique motion and document of committee as your tool to advance your interests. Each part of the ROP is made with our diversity of roles and stances in mind, and we hope your actions reflect the diversity of options we've provided.

Remember that your character is flexible. It is up to your personal interpretation as a representing lawyer, justice with a specific constitutional philosophy, or expert amicus curiae to decide how to act within your role. Research your position extensively, learn to leverage what you have in common with other delegate's roles, and exercise your character's unique position and privileges to best fit your goals in this committee.

Lastly, don't hesitate to reach out to either of us - our respective emails are in the welcome letters at the top of this background guide. We encourage you to ask questions about your role and what direction you should be aiming for in the committee and are more than happy to help you get more well-informed before the day of conference arrives.

See you soon!

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